

was bound to pay the money as the trustee directed (*b*), and having obeyed that direction was exonerated from the consequences. Various transactions might have occurred between the trustee and *cestuis que trust* (such as the execution of a previous mortgage on sufficient security), which would make such a payment perfectly legitimate (*c*). The Court in this case was protecting a *bonâ fide* purchaser, and the principle here laid down must be applied with great caution. A purchaser who has paid his money to another by the direction of the trustee may be protected under the special circumstances of the case, but no purchaser who has the money still in his pocket can be advised to pay it to any other than the trustee * or his duly authorised agent (*a*); [and in [*474] the present state of the authorities the most prudent course is to pay it to the trustee *personally*, and if there are more trustees than one to pay it in the presence of all the trustees, or else to pay it into a bank to their joint account (*b*).]

24. Receipts for money extraneous to trust. — A power of signing receipts in a settlement will extend only to what the trustees are by the settlement authorised to receive (*c*).

25. Feme covert. — When one of the trustees is a *married woman*, the questions arise, can she by virtue of the power sign a receipt without the concurrence of her husband, who is answerable for her acts; and ought the money to be paid to herself, or to her husband who on the one hand is answerable for her acts, but on the other hand is not the person pointed out by the settlement as the hand to receive it? It would appear on principle that the money cannot be paid to

[(*b*) But see as to this *Re Bellamy and Metropolitan Board of Works*, 24 Ch. D. 387; *Re Flower and Metropolitan Board of Works*, 27 Ch. D. 592, where it was held that the purchaser could not be compelled to pay to the nominee of the trustees or even to one of the trustees by the direction of the others, and see *ante*, pp. 447, 448.]

(*c*) *Hope v. Liddell*, 21 Beav. 202, 203; and see *Locke v. Lomas*, 5 De G. & Sm. 326; *M'Carogher v. Whiel-*

don, 34 Beav. 107; [*Ferrier v. Ferrier*, 11 L. R. Ir. 56;] but see *Pell v. De Winton*, 2 De G. & J. 13.

(*a*) [*Re Bellamy and Metropolitan Board of Works*, 24 Ch. D. 387; *Re Flower and Metropolitan Board of Works*, 27 Ch. D. 592; and] see *Re Fishbourne*, 9 Ir. Eq. Rep. 340; and *ante*, pp. 447, 448.

[(*b*) See *ante*, pp. 447, 448.]

(*c*) *Pell v. De Winton*, 2 De G. & J. 20, *per Cur.*